



**Australian Government**  
**Department of Health and Aged Care**  
Therapeutic Goods Administration

Mr Paul Rekaris  
**Email:** paulrekaris@gmail.com

Dear Mr Rekaris

**FREEDOM OF INFORMATION REQUEST FOI 25-0166**  
**Request Consultation Process**

1. I refer to your request dated 1 April 2025 under the *Freedom of Information Act 1982* (the FOI Act) and subsequent correspondence between you and the TGA in which the scope of your request was clarified as being for access to the following documents:

**Scope refinement received on 5 May 2025 (following first request consultation):**

*'In light of your practical refusal consultation, I am willing to further refine my request as follows:*

1. *Specific Priority Documents (limited to no more than 20 documents):*
  - a) *The TGA's documented "Criteria for COVID-19 vaccine report escalation and clinical review incorporated into the TGA's standard procedures" (referenced on page 7 of the COVID-19 Vaccine Safety Monitoring Plan)*
  - b) *Documentation establishing the "standing COVID-19 expert advisory committee ready to provide advice on COVID-19 vaccine safety issues" (page 9 of the Plan)*
  - c) *"Specific protocols for investigating COVID-19 AEFI reports" (page 8 of the Plan)*
  - d) *"Refined processes and statistical methods for analysing observed COVID-19 AEFI rates for detecting safety signals" (page 8 of the Plan)*
  - e) *"Processes to enable rapid action in response to any emerging COVID-19 vaccine safety concerns" (page 10 of the Plan)*
2. *Representative Sample (limited to 25 additional documents):*
  - a) *Up to 5 documents pertaining to each of the 5 objectives in the Safety Monitoring Plan*
  - b) *Documents spanning the period February 2021 to December 2023*
  - c) *A mix of document types (procedures, reports, briefings)*
3. *Document Index:*
  - a) *A schedule listing key documents identified (with titles, dates, and brief descriptions)*

*This revised request significantly reduces the processing burden while providing essential documentation to understand how the TGA implemented its Safety Monitoring Plan. It addresses your practical refusal concerns by:*

- *Reducing document volume by approximately 88% (from 399+ to about 45 documents)*
- *Focusing on the most significant implementation documentation*
- *Limiting third-party consultation requirements*
- *Providing a framework for future targeted requests*

*As stated in my original request, I am not seeking personal information about individuals or commercially sensitive information about vaccine manufacturers.'*

### **Further scope clarification received 9 May 2025:**

#### *'1. Point 2 - Representative Sample*

*I'm happy to clarify this request. Instead of a "representative sample," I would like to request:*

*For each of the 5 objectives in the Safety Monitoring Plan, the 5 most significant documents that demonstrate implementation or operationalisation of that objective spanning the period February 2021 to December 2023*

*By "most significant," I mean documents that best demonstrate how the TGA implemented each objective of the Plan (such as procedure documents, key implementation records, major review documents, or substantial operational protocols)*

*This provides specific parameters needed for your search (25 documents total, with clear criteria for selection) while still capturing substantive information about how the Plan was implemented across all objectives throughout the relevant period.*

#### *2. Point 3 - Document Index*

*I understand your concerns regarding section 17 of the FOI Act and am willing to remove point 3 from my request.*

*Given your advice that processing point 1 alone would be reasonable and would provide valuable information on the TGA's implementation of the Safety Monitoring Plan, I am prepared to proceed with:*

*Point 1 as originally formulated (the specific priority documents)*

*The modified version of point 2 as clarified above*

*Removal of point 3 entirely*

*This revised scope should address your concerns while still providing meaningful documentation of how the TGA implemented its COVID-19 Vaccine Safety Monitoring Plan.'*

### **Decision Maker**

2. I am the Therapeutic Goods Administration (TGA) officer authorised to make a decision on your request under the FOI Act.

### **Requirement to undertake a request consultation process**

3. Under section 24(1)(b) of the FOI Act, a practical refusal exists in relation to a request for documents if the request does not satisfy the requirements of section 15(2)(b) of the FOI Act.
4. Specifically, section 15(2)(b) of the FOI Act requires you to provide information concerning the document as is reasonably necessary to enable a responsible officer of the agency to identify it.
5. Unfortunately, in its current form, the scope of your revised request (specifically item 2) remains unclear and does not provide enough information to allow an officer of the TGA to undertake a search and retrieval process or reasonably identify the documents you are seeking.
6. Specifically, and notwithstanding your explanatory comments regarding the proposed scope of item 2, I consider that item 2 requires the TGA to make a subjective decision as to which documents are considered 'most significant'.
7. Although I am not bound to do so under the FOI Act, before deciding on the outcome of your request I have decided to undertake a second request consultation process in accordance with section 24AB of the FOI Act and provide you with the opportunity to refine the scope of your request.
8. A copy of the sections of the FOI Act that set out the consultation process (sections 24, 24AA and 24AB) is at **Attachment A**.

### **Clarification of scope of request**

9. I have outlined the following points from your revised scope (as set out in paragraph 1), along with an explanation about each point:

- **Point 1:** As set out in paragraph 1 above, point 1 is currently considered to be clear and reasonable to process, and documents relevant to point 1 would likely provide you with information helping you to understand how the TGA implemented its Safety Monitoring Plan.
  - **Point 2:** As discussed in paragraphs 5-6 above, the terms '*representative sample*' or '*significant documents*' remain ambiguous, are open to conjecture and do not allow key staff to reasonably conduct appropriate searches or to identify documents, and accordingly item 2 of your request does not satisfy the requirements of section 15(2)(b) of the FOI Act (as mentioned above).
  - **Point 3:** As set out in paragraph 1, point 3 of your scope has been removed and will not be processed. No further action is required regarding this point.
10. Noting the above, we seek your consideration of revising your scope to **only include item 1 of your scope**. Your consideration of accessing such documents in the first instance may assist you to make a further valid request in future.

### Guidance on accessing the TGA's publicly available information

11. [Advisory Committee on Vaccines \(ACV\) | Therapeutic Goods Administration \(TGA\)](#)
12. [COVID-19 vaccine safety reports | Therapeutic Goods Administration \(TGA\)](#)

### Notification of request consultation process

13. As outlined above, I have decided to undertake a request consultation process in accordance with section 24AB of the FOI Act and provide you with the opportunity to refine the scope of your request.
14. Accordingly, you are now afforded fourteen (14) calendar days from your receipt of this letter in which to contact the TGA to discuss a revision of the scope of your request. The processing time for your request has been set aside to allow for the request consultation period.
15. Before the end of the 14-day consultation period, you must do one of the following:
  - withdraw your request;
  - make a revised request (it is preferable to submit a draft revised scope for consideration); or
  - indicate that you do not wish to revise your request.
16. Should you require further time to consider submitting a revised scope, you are welcome to request an extension to the consultation period in writing to the TGA, in accordance with subsection 24AB(5) of the FOI Act.
17. If you have not contacted the TGA within 14 days of receiving this letter to do one of the above or consulted the TGA to discuss revising your scope, your request is taken to have been withdrawn.
18. If you wish to refine the scope of your request, you may contact the FOI team on (02) 6289 4630 or at [TGAFOI@health.gov.au](mailto:TGAFOI@health.gov.au).
19. Please note that if you indicate that you do not wish to revise your request or revise your request in such a way that I am still of the view that processing it would substantially and unreasonably divert TGA resources from other operations, I may refuse your request under paragraph 24(1)(b) of the FOI Act.

Yours sincerely

Freedom of Information team  
 Legislation, Advice and FOI Branch  
 Regulatory Legal Services Division  
 Therapeutic Goods Administration  
 16 May 2025